

26STLC01900 26STLC01900

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-27

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Case Number: 26STLC01900 Hearing Date: July 27, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff Guhan Santhappan's

Motion for Summary Adjudication is denied.

Analysis:

On March

19, 2026, Plaintiff Guhan Santhappan("Plaintiff")

filed the instant action for return of personal property and declaratory relief.

(Compl., p. 1.) Defendant filed a Response to Complaint on April 15, 2026. On

May 4, 2026, Plaintiff filed the instant Motion for Summary Adjudication.

Defendant filed an opposition on June 2, 2026 and Plaintiff replied on June 29, 2026.

Discussion

The Motion is not accompanied by a memorandum of points and authorities, as required by the California Rules of Court. "The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. Rules of Court, Rule 3.1113(b).) Indeed, a party's failure to provide a memorandum as required by the Rule is an "admission that the [request] is without merit and cause for its denial." (Cal. Rules of Court, Rule 3.1113(a), (b); *In re Marriage of Falcone & Fyke* (2012) 203 Cal.App.4th 964, 976.)

Plaintiff filed a document entitled "Notice of Motion and Motion," which appears to be solely a notice of motion, as it is less than one page long and includes no attached memorandum, nor does it reference any legal authority. (Notice of Motion and Motion, pp. 1-2.) Without citation to legal authority and an explanation of how it applies to the evidence, the Court cannot award Plaintiff summary adjudication.

Conclusion

Plaintiff Guhan Santhappan's
Motion for Summary Adjudication is denied.

Judicial Assistant to give
notice.